

Bid Document/ बिड दस्तावेज़

Bid Details/बिड विवरण	
Bid End Date/Time/बिड बंद होने की तारीख/समय	15-03-2024 11:00:00
Bid Opening Date/Time/बिड खुलने की तारीख/समय	15-03-2024 11:30:00
Bid Offer Validity (From End Date)/बिड पेशकश वैधता (बंद होने की तारीख से)	180 (Days)
Ministry/State Name/मंत्रालय/राज्य का नाम	Ministry Of Home Affairs
Department Name/विभाग का नाम	Central Armed Police Forces
Organisation Name/संगठन का नाम	Central Reserve Police Force (crpf)
Office Name/कार्यालय का नाम	Dte. Genl.
Total Quantity/कुल मात्रा	5000
Item Category/मद केटेगरी	Bullet Resistance Jacket (V3) (Q2)
Minimum Average Annual Turnover of the bidder (For 3 Years)/बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का)	500 Lakh (s)
OEM Average Turnover (Last 3 Years)/मूल उपकरण निर्माता का औसत टर्नओवर (गत 3 वर्षों का)	1000 Lakh (s)
Years of Past Experience Required for same/similar service/उन्हीं/समान सेवाओं के लिए अपेक्षित विगत अनुभव के वर्ष	2 Year (s)
MSE Exemption for Years Of Experience/अनुभव के वर्षों से एमएसई छूट/ and Turnover/टर्नओवर के लिए एमएसई को छूट प्राप्त है	Yes
Startup Exemption for Years Of Experience/अनुभव के वर्षों से स्टार्टअप छूट/ and Turnover/ टर्नओवर के लिए स्टार्टअप को छूट प्राप्त है	Yes
Document required from seller/विक्रेता से मांगे गए दस्तावेज़	Experience Criteria,Past Performance,Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,OEM Annual Turnover,Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

Bid Details/बिड विवरण	
Past Performance/विगत प्रदर्शन	30 %
Bid to RA enabled/बिड से रिवर्स नीलामी सक्रिय किया	Yes
RA Qualification Rule	H1-Highest Priced Bid Elimination
Type of Bid/बिड का प्रकार	Two Packet Bid
Time allowed for Technical Clarifications during technical evaluation/तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय	7 Days
Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Evaluation Method/मूल्यांकन पद्धति	Total value wise evaluation

EMD Detail/ईएमडी विवरण

Advisory Bank/एडवाइजरी बैंक	State Bank of India
EMD Amount/ईएमडी राशि	27500000

ePBG Detail/ईपीबीजी विवरण

Advisory Bank/एडवाइजरी बैंक	State Bank of India
ePBG Percentage(%) / ईपीबीजी प्रतिशत (%)	5.00
Duration of ePBG required (Months) / ईपीबीजी की अपेक्षित अवधि (महीने).	62

(a). EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy./जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने हैं। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।

(b). EMD & Performance security should be in favour of Beneficiary, wherever it is applicable./ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए।

Beneficiary/लाभार्थी :

DIG(PROV) DTE GENL, CRPF, NEW DELHI.

Dte. Genl., Central Armed Police Forces, Central Reserve Police Force (CRPF), Ministry of Home Affairs (Shahnawaz Khan)

Splitting/विभाजन

Bid splitting not applied/बोली विभाजन लागू नहीं किया गया.

MII Purchase Preference/एमआईआई खरीद वरीयता

MII Purchase Preference/एमआईआई खरीद वरीयता	Yes
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MSE Purchase Preference/एमएसई खरीद वरीयता

MSE Purchase Preference/एमएसई खरीद वरीयता	Yes
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1. If the bidder is a Micro or Small Enterprise as per latest definitions under MSME rules, the bidder shall be exempted from the requirement of "Bidder Turnover" criteria and "Experience Criteria" subject to meeting of quality and technical specifications. If the bidder is OEM of the offered products, it would be exempted from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. In case any bidder is seeking exemption from Turnover / Experience Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer.
2. If the bidder is a Startup, the bidder shall be exempted from the requirement of "Bidder Turnover" criteria and "Experience Criteria" subject to their meeting of quality and technical specifications. If the bidder is OEM of the offered products, it would be exempted from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. In case any bidder is seeking exemption from Turnover / Experience Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer.
3. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
4. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU / Public Listed Company for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.
5. OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
6. Preference to Make In India products (For bids < 200 Crore): Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023.

[OM No.1_4_2021_PPD_dated_18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017.

7. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued

by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail the Purchase preference, the bidder must be the manufacturer of the offered product in case of bid for supply of goods. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service. If L-1 is not an MSE and MSE Seller (s) has/have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such Seller shall be given opportunity to match L-1 price and contract will be awarded for 25%(selected by Buyer) percentage of total QUANTITY. The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023

[OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017.

8. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 30% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU / Public Listed Company. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

9. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- If number of technically qualified bidders are only 2 or 3.
- If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

Bullet Resistance Jacket (V3) (5000 pieces)

(Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively/कमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक)

Bis Required	Yes
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Technical Specifications/तकनीकी विशिष्टियाँ

[* As per GeM Category Specification/जेम कैटेगरी विशिष्टि के अनुसार](#)

Specification	Specification Name/विशिष्टि का नाम	Bid Requirement/बिड के लिए आवश्यक (Allowed Values)/अनुमत मूल्य
Specification	Technical Specification of the Product	Bullet Resistance Jacket as per BIS specification no IS 17051 with Amd. 1 and 2 (Latest)
Certification	Availability of Valid Industrial License issued under ID&R Act 1951 by Department for Promotion of Industry and Internal Trade (DPIIT)	Yes
Protection	Permissible Back Face Signature (BFS)	44 mm
	Upgrades	Upgrade 1
	Threat Level- Front Panel	Level - 6
	Threat Level- Back Panel	Level - 6
	Threat Level- Side Panels	Level - 6

Specification	Specification Name/विशिष्टि का नाम	Bid Requirement/बिड के लिए आवश्यक (Allowed Values)/अनुमत मूल्य
	Threat Level- Groin Panel	Not Applicable
	Threat Level- Throat Panel	Not Applicable
	Armour Panel Configuration - Front Panel	Soft Armour Panel (SAP) and Hard Armour Panel (HAP) - In Conjunction with (ICW) Configuration
	Armour Panel Configuration - Back Panel	Soft Armour Panel (SAP) and Hard Armour Panel (HAP) - In Conjunction with (ICW) Configuration
	Armour Panel Configuration - Side Panels	Soft Armour Panel (SAP) and Hard Armour Panel (HAP) - In Conjunction with (ICW) Configuration
	Armour Panel Configuration - Throat Panel	Not Applicable
	Armour Panel Configuration - Groin Panel	Not Applicable
Area of HAP Panel	Area of HAP - Front Panel	As per table 5 of IS 17051
	Area of HAP - Back Panel	As per table 5 of IS 17051
	Area of HAP - Side Panel	As per table 5 of IS 17051
	Area of HAP - Groin Panel	Not Applicable
	Area of HAP - Throat Panel	Not Applicable
Size	Jacket Size	Extra Small (XS), Small (S), Medium (M), Large (L), Extra Large (XL)
Operating Conditions	Extreme Temperatures- High Temperature	Yes, No
	Extreme Temperatures- Low Temperature	Yes, No
	Fluid Exposure- Water Resistance	Yes
	Fluid Exposure- Sea Water Resistance	Yes, No
	Transit Conditions- Mechanical Drop Test	Yes, No
	Transit Conditions- Vibration Test	No
Pockets	Nos of Magazines Pockets	2
	Nos of Grenade Pockets	2
	Other Pockets	Radio Set Pocket
Other Requirement	Quick Release Mechanism	No
	Dynamic Weight Distribution System	No
	High Buoyancy	No

Specification	Specification Name/विशिष्टि का नाम	Bid Requirement/बिड के लिए आवश्यक (Allowed Values)/अनुमत मूल्य
	Agree for Ballistic Limit Test as per clause 9.3 of IS 17051	No
Ballistic Test	Name of the Laboratory issuing Ballistic Test Report	National Forensic Sciences University (NFSU)
Advance Sample	Agree to provide Advance Sample(s) for buyer's approval before commencement of bulk production/ supply (Advance sample shall be examined for basic ergonomic features, size, pattern and color/print)	Yes

Additional Specification Parameters - Bullet Resistance Jacket (V3) (5000 pieces)

Specification Parameter Name	Bid Requirement (Allowed Values)
Operating conditions	i) Extreme Temperatures High/low Temperatures -not required ii) Service life assessment test- Yes required. iii)Fluid Exposure- Sea Water Resistance- Not required iv) Transit Conditions- Mechanical Drop Test- Not required.
Colour	CRPF Digital Camouflage pattern
Advance Sample	Not required.
Jackets Size	Size Medium-1000 Nos, Large -3000 Nos, Extra Large-1000 Nos

* Bidders offering must also comply with the additional specification parameters mentioned above.

Consignees/Reporting Officer/परेषिती/रिपोर्टिंग अधिकारी and/ तथा Quantity/मात्रा

S.No./क्र. सं.	Consignee Reporting/Officer/ परेषिती/रिपोर्टिंग अधिकारी	Address/पता	Quantity/मात्रा	Delivery Days/डिलीवरी के दिन
1	Komal Singh	131021,DIGP GC CRPF SONEPAT, KHEWRA, SONEPAT, POST-BAHALGARH (HARYANA)	5000	180

Buyer Added Bid Specific Terms and Conditions/क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें

1. **Generic**

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

2. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

3. **Warranty**

Warranty period of the supplied products shall be 2 years from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

4. **Forms of EMD and PBG**

Successful Bidder can submit the Performance Security in the form of Fixed Deposit Receipt also (besides PBG which is allowed as per GeM GTC). FDR should be made out or pledged in the name of

DIG(PROV)DTE, CRPF, CGO COMPLEX, LODHI ROAD, NEW DELHI
A/C (Name of the Seller). The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of the pledgee. For release of Security Deposit, the FDR will be released in favour of bidder by the Buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Successful Bidder has to upload scanned copy of the FDR document in place of PBG and has to ensure delivery of hard copy of Original FDR to the Buyer within 15 days of award of contract.

5. **Generic**

Buyer Organization specific Integrity Pact shall have to be complied by all bidders. Bidders shall have to upload scanned copy of signed integrity pact as per Buyer organizations policy along with bid. [Click here to view the file](#)

6. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

Additional terms and conditions (ATC)

1.	Buyer added Additional terms and condition shall prevail over and supersede corresponding GeM General terms and Conditions in the instant bid.
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2.	Force Majeure Clause	:	If at any time, during the continuance of this contract, the performance in whole or in part by either party of any obligation under this contract shall be prevented or delayed by reason of any war, hostility, acts of public enemy, civil commotion, sabotage, fires, floods, explosions, epidemics, quarantine restrictions, strikes, lockouts or act of God (hereinafter referred to "events") provided, notice of the happening of any such event is given by either party to the other within 21 days from the date of occurrence thereof, neither party shall by reason of such event, be entitled to terminate this contract nor shall either party have any claim for damages against the other in respect of such non-performance or delay in performance, and deliveries under the contract. The contract shall be resumed as soon as practicable after such event has come to an end or ceased to exist, and the decision of the Purchaser as to whether the deliveries have been so resumed or not, shall be final and conclusive, Provided further that if the performance in whole or part or any obligation under this contract is prevented or delayed by reason of any such event for a period exceeding 90 days, either party may at its option terminate the contract provided also that if the contract is terminated under this clause, the purchaser shall be at liberty to take over from the contractor at a price to be fixed by the Purchaser, which shall be final, all unused, undamaged and acceptable materials, bought out components and stores in course of manufacture in the possession of the contractor at the time of such termination or such portion thereof as the purchaser may deem fit excepting such materials, bought out components and stores as the contractor may with the concurrence of the purchaser elect to retain.
3	Liquidated Damages	:	In case firm does not complete the supply within fixed Delivery Period, Liquidated Damages will be imposed / recovered @ 0.5% of the price of Stores which the contractor failed to deliver within the period fixed for delivery, for each week or part of a week during which the delivery of such store may be in arrears where delivery thereof is accepted after expiry of the aforesaid period, provided that the total damages <u>so claimed shall not exceed 10% of the value of delayed store</u> after which purchaser reserve the right to either extend further or cancel the contract as per Para 9.7.10 of Manual of Procurement of Goods-2017.
4	Arbitration	:	In the event of any question, dispute or difference arising under these conditions or any special conditions of contract (A/T) or in connection with this contract (Except as to any matters, the decision of which is specifically provided for by these or the special conditions), the same shall be referred to the sole arbitration of an officer in the Min. of law & Justice and

appointed to be arbitrator by Director General CRPF . It will be no objection that the arbitrator is a Government servant that he had to deal with the matters to which the contract relates or that in the course of his duties as a government servant he has expressed views on all or any of the matters in dispute or difference. The award of the arbitrator shall be final and binding on the parties to this contract, it is term of this contract that:-

- a. If the arbitrator be a person appointed by the DG, CRPF:-

In the event of his dying, neglecting or refusing to act, or resigning or being unable to act, for any reason or his award being set aside by the court for any reason, it shall be lawful for Secretary, Min. of Home Affairs/ Min. of law & Justice either to proceed with the reference himself or to appoint another person as Arbitrator in place of the outgoing Arbitrator in every such case, it shall be lawful for the DG CRPF in place of the outgoing Arbitrator, as the case may be to act on record of the proceeding as then taken in arbitration, or to commence the proceedings de novo as he may at his discretion decide.

- b. It is further a term of this contract that no person other than the person appointed by him should act as Arbitrator and that if for any reason that is not possible, the matter is not to be referred to arbitration at all.

- c. The arbitrator may with the consent of all the parties to the contract enlarge the time from time to time for making and publishing the award.

- d. Upon every and any such reference, the assessment of the cost incidental to the reference and award respectively shall be in the discretion of the Arbitrator.

- e. Subject as aforesaid, the Arbitration Act, 1996 and the rules there under and any statutory modification thereof for the time being in force shall be deemed to apply the arbitration proceedings under this clause.

- f. The venue of arbitration shall be the place where the contract is concluded or such other place as the DG, CRPF at his discretion may determine.

- g. In this clause the expression the DG, CRPF means the DG, CRPF of the Ministry of Home Affairs for the time being and includes, if there be no DG, the Officer who is for the time being the administrative head of the CRPF, whether in addition to other functions or otherwise.

- h. In case tenderers do not agree to Arbitration clause as mentioned in the tender enquiry, they may opt for settlement through Court in New Delhi, India only. Jurisdiction of the Court as

			a result of this tender invitation will be the place from which the contract is issued i.e. New Delhi. All disputes arising out of the contract shall be settled in the jurisdiction of Territory of Delhi under provisions of Indian Court of Law. i. Arbitration proceeding shall be conducted in a language mutually agreed, preferred in English. j. In Case, at any stage it is found that the award or contract which is the basis of the award is induced or effected by fraud or corruption, either party can approach the competent court of Law to stay the award unconditionally pending disposal of the challenge under Section 34 to the award.
5	Extension of DP	:	As per norms, the purchaser has right to consider the request for extension of Delivery Period. Such extension will be given by the competent authority by reserving the right of the purchaser to levy Liquidated Damages (LD), R/R and denial clause for delay as per rules and with denial of increase in price, taxes, duties etc. taking place during the extended period.
6	Consignees are requested to complete CRAC & GeM related formalities on the GeM portal and flash information to the Commandant (Procurement), Directorate General, CRPF, New Delhi and the Indenter and paying authority immediately on receipt of the goods against the subject contract indicating the following :- (a) Contract No. & Date. (b) Date of dispatch by the contractor with mode of dispatch, receipt no. with date. (c) Date of actual receipt of consignment/goods by the consignee along with quantity. (d) Any loss/damages to the goods that may have occurred during transit should be notified to the contractor immediately on receipt / inspection of stores.		
7.	Warrantee/Guaranty	:	24 Months from the date of acceptance of store.
8.	Requirement of After Sale Service	:	Yes required. After warranty period, the firm shall offer after sale service and maintenance in India in case of any damage in SAP & HAP on payment basis.
9.	Tender Sample	:	Tender sample required for STEC cum field trial of the equipment and the same will required to be deposited by all participating firms before STEC cum field trial at GC Greater Noida, all firms, who will technically qualify in the tender process, will be given 30 days time for depositing of tender sample at GC Greater Noida. The 30 days time will start from the date of issuing the letter to the firm for depositing the same. Details of Tender samples as under:- <u>Requirement of Tender Samples</u> Requirements:-

- a) Size : Thre
e (Medium, Large and Extra
Large
e)
- b) Threat level : BIS le
vel - 6 as per table 7 of IS
170
51
- c) Operational requirements :1) Fluid
exposure (water)

2) Life assessment.

**Calculation of Number of Tender Sampl
es**

Sl. N o.	Thr eat Lev el	Size	Opera ting C onditi on	No. of Ja ckets re quired f or ballistic testing	Total Ja ckets r equired .
1.	1(IC W d esig n)	M, L & XL (1 Ja cket from each size)	Water	1 (only SAP) Any one size cho sen by u ser	03 Jack ets (one fr om eac h size i. e M, L & XL)
			Life a ssess ment	1 (only SAP) Any one size cho sen by u ser	
2.	6	M	Water	1 (HAP + SAP)	02+01 (Reserv e)
			Life a ssess ment	1 (HAP + SAP)	
		L	Water	1 (HAP + SAP)	02+01 (Reserv e)
			Life a ssess ment	1 (HAP + SAP)	
		XL	Water	1 (HAP + SAP)	02+01 (Reserv e)

				Life assessment	1 (HAP + SAP)	
					Total	09 + 03 = 12 Jackets
				-		
				Size wise details of Tender samples -		
			S/No.	Size	Tender sample required.	
			1.	Medium	04 Nos.	
			2.	Large	04 Nos.	
			3.	XL	04 Nos.	
10 .	Place of Field trial/ Physical demonstration	:	GC, CRPF Greater Noida (U.P)			
11 .	STEC cum Field trial	:	STEC cum Field trial will be conducted by an Inter CAPFs BOOs for evaluation of the tender samples. Only those firms whose tender sample will qualify the desired parameters of BIS Standard 17051: 2018 and all its further amendments; will be eligible for the next stage of procurement process. Tender Sample will be evaluated against all the parameters mentioned in the BIS including ballistic testing.			
12 .	Mode of inspection	:	PDI will be conducted by a BOOs detailed by DG CRPF at firm location and firm's representative will be a part of PDI proceedings. Following to be checked during PDI. i) PDI (Pre Dispatch Inspection) will be conducted at factory premises of the firm in accordance to the procedure mentioned prescribed in BIS specification 1705:2018 and all its further amendments . ii) After offering the store, offered store will be placed under the lock and Key of CRPF. iii) During PDI, BOOs will ensure following:- a) Quantitative checking to verify that the quantities of the delivered goods shall meet the quantities defined in the TE/Acceptance of Contract and the invoices. b) Complete qualitative functional checking of each offered lot should be done			

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Size wise details of Tender samples -

S/No.	Size	Tender sample required.
1.	Medium	04 Nos.
2.	Large	04 Nos.
3.	XL	04 Nos.

10	Place of Field trial/ Physical demonstration	:	GC, CRPF Greater Noida (U.P)
11	STEC cum Field trial	:	STEC cum Field trial will be conducted by an Inter CAPFs BOOs for evaluation of the tender samples. Only those firms whose tender sample will qualify the desired parameters of BIS Standard 17051: 2018 and all its further amendments; will be eligible for the next stage of procurement process. Tender Sample will be evaluated against all the parameters mentioned in the BIS including ballistic testing.
12	Mode of inspection	:	PDI will be conducted by a BOOs detailed by DG CRPF at firm location and firm's representative will be a part of PDI proceedings. Following to be checked during PDI. i) PDI (Pre Dispatch Inspection) will be conducted at factory premises of the firm in accordance to the procedure mentioned prescribed in BIS specification 1705:2018 and all its further amendments. ii) After offering the store, offered store will be placed under the lock and Key of CRPF. iii) During PDI, BOOs will ensure following:- a) Quantitative checking to verify that the quantities of the delivered goods shall meet the quantities defined in the TE/Acceptance of Contract and the invoices. b) Complete qualitative functional checking of each offered lot should be done.

			ne as per the BIS 17051:2018 and terms & conditions of TE and A/T. iv) Only 91 size of B.R. Jacket shall be offered in one lot. v) PDI board will randomly select lot samples from the offered lot of each size. Sampling of offered lot will be done as per the procedure prescribed in BIS specifications and these lot samples shall be evaluated as per procedure mentioned in BIS procedure mentioned in BIS 17051:2018 and its further amendments. vi) Lot samples will be evaluated for following parameters as per BIS specifications: a) Physical parameters testing including 3D scan. b) Outer carrier Fabric testing. c) Ballistic evaluation. vii) Ballistic evaluation of BR Jacket of lot samples will be conducted for the following operational requirements as per BIS specifications 17051:2018:- a) Water resistance test b) Service life assessment viii) The lot samples that will be used in Ballistic and other testing procedures of PDI shall remain the property of the procuring agency i.e.CRPF. ix) Each Bullet resistant jacket shall be legibly indelibly marked with the following information on it on durable and securely attached labels:- a) Name of the Product. b) Manufacturer's name , initials or trade-mark. c) Size designation. d) Instruction for storage and care. e) Batch Number. f) Date of manufacture in mm/year format. x) If the supply is found inferior and not conforms to specifications, the entire lot will be rejected at cost, risk and freight of the supplier. The consignee's right of rejection in this regard shall be final and absolute. xi) All the inspection/lab test charges during PDI will be borne by the vendor.
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13 .	Past Performance	:	Being a high value critical item, 30 % past performance criteria will be considered in any one of the last three financial years for this purchase. With reference to past performance only B.R Jackets (BIS Level-5 and above) and Ballistic shield of BIS level-5 and above will be considered.
14 .	Specification QRs/TDs	:	As per BIS 17051:2018 approved by appropriate authority.
15 .	Configuration of the BR Jackets	:	i) Threat level - BIS (Level-6) Front Panel - BIS (Level-6) Back Panel - BIS (Level-6) Side Panel - BIS (Level-6) ii) BFS - 44 mm iii) Configuration- In conjunction with (ICW) with Up-gradation 1 (Front, back & side plates) iv) Sizes - Medium- 1000 No Large - 3000 No Extra large-1000 No v) Colour - CRPF Camouflage pattern. vi) Area of HAP panels- As per table 5 of IS 17051
16 .	Configuration of the outer carrier harness of BR Jackets	:	i) Two (2) detachable Magazine pouches, which can hold 2 AK magazines. ii) One attachment to hold radio set on right hand shoulder iii) Two detachable pouches for hand grenades. Note :- Quick release, Dynamic weight distribution system is not required, Throat, Groin panels are also not required.
17 .	Requirement of License	:	Industrial license from DPIIT is required for commercial production of BR Jackets.

18	Termination of Contract	:	Time shall be the essence of the contract. The purchaser shall have the right to terminate this Contract without any notice in part or in full in any of the following cases:- a) The delivery of the material is delayed or causes not attributable to Force Majeure after the scheduled date of delivery. b) The seller is declared bankrupt or becomes insolvent. c) The delivery material is delayed due to causes of Force Majeure by more than 90 days. d) In case Performance Security is not furnished within 15 days from the date of issuing of Contract Order. e) As per Convenience of Buyer.
19	Purchaser discretion	:	(a) Purchaser reserves the <u>right to change the consignee</u> and <u>change the quantity</u> of stores allotted to them as per requirement at any stage. (b) Purchaser reserves the <u>right to cancel / reject or Scrap the tender</u> without assigning any reason. (c) Purchaser reserves the <u>right to increase/decrease the quantity</u> without assigning any reason. (d) Purchaser reserves the right to get the manufacturing capacity of all firms re-verified irrespective of the registration status.
20	Consignee's Right of Rejection	:	Notwithstanding any approval which the Inspector may have given in respect of the stores or any part or portion thereof or any materials or other particulars of the work or workmanship involved in the performance of the contract (whether with or without any test carried out by the contractor or the Inspector or under the direction of the Inspector) notwithstanding delivery of the stores where so provided to the interim consignee, it shall be lawful for the consignee, on behalf of the Purchaser to reject the stores or any part, portion or consignment thereof (i) As per GeM terms and condition, after actual delivery thereof to him at the place or destination specified in the schedule.

21	Cartel formation/Pool Rates/Bid Rigging/Collusive Bidding etc.	:	Para 8.1.13 of Manual of Procurement of Goods 2017 (updated up to June 2022) stipulates “Quoting of pool rates/Cartel formation, bid rigging/collusive bidding is against the basic principle of competitive bidding and defeats the very purpose of open and competitive tendering system. Such practices will be severely discouraged with strong measures. Suitable administrative actions will be taken like rejecting the offers, reporting the matter to Competition Commission of India, on case to case basis, as decided by the competent authority. This Department will also bring such unhealthy practice to the notice of the concerned trade associations like FICCI, ASSOCHAM, NSIC, etc. requesting them, inter alia, to take suitable strong action against such firms. This Department will also encourage new firms to get themselves registered to break the monopolistic attitude of the firms giving pool rate/forming cartel. CRPF may also debar the tenderers indulging in cartel formation/collusive bidding/bid rigging for a period of two year from participation in the tenders of the Purchaser.”
22	Pre Contract Integrity Pact	:	a) Pre-Contract Integrity Pact is to be signed between the buyer and bidder on the standard proforma enclosed as Appendix-2 (Scan copy of “Signed PCIP Documents” as available for download at Sl. No. 5 in Generic Term Conditions of this Bid), Accordingly , all bidder are required to submit 02 copies ‘Pre Contract Integrity Pact’ duly completed in all respects and signed properly on each page by the authorized signatories of the bidders and two witnesses as per format, with their tender documents. This is required to avoid all forms of corruption by following a system that is fair, transparent and free from any influence/prejudiced dealing prior to, during and subsequent to the currency of the contract to be entered into. b)PCIP is part of the contract and the parties concerned are bound by its provisions. A person signing PCIP shall not approach the Courts while representing the matters of IEMs and he/she will await their decision in the matter. c)Offer of those firms, who have not attached Pre Contract Integrity Pact duly completed and signed properly along with the name of witnesses with their tender document, are liable to be rejected.

23 .	Performance Security Deposit (PSD)	:	Performance Security Deposit (PSD) @ 5% of the total contract value is required to be deposited by the successful bidder which shall remain valid up to a period of 05 years (as per PCIP). + 60 days
24 .	Denial Clause	:	Any increase in statutory duties and/or upward rise in prices due to the PVC clause and/or any adverse fluctuation in foreign exchange are to be borne by the seller during the extended delivery period, while the purchaser reserves his right to get any benefit of a downward revisions in statutory duties.

25	Earnest Money	:	Bid Security Declaration certificate is required to be submitted by MSME as MSE and manufacturer (OEM) [Appendix-I]. Earnest Money Deposit amounting Rs 2,75,00,000/- (Rupees Two crores seventy five lakhs) is to be submitted (Offline) by bidders/authorized agents/reseller, if applicable, which will be valid for 225 days from the date of opening of bid. No interest shall be payable by the purchaser on the EMD deposited by tenderer. The EMD (Earnest Money) deposited is liable to be forfeited if the tenderer withdraws or amends impairs or derogates from the tender in any respect within the period of validity of his tender. The EMD of the successful tenderer shall be returned after the <u>performance security deposit</u> as required in terms of the resulting contract is furnished by the firm. If the successful tenderer fails to furnish the <u>performance security deposit</u> as required in the contract within the stipulated period, the Earnest Money shall be liable to be forfeited by the purchaser. EMD of the unsuccessful tenderers shall be returned within 30 days of finalization of tender. Earnest Money can be deposited in any one of the following alternate forms:- (i) A Fixed Deposit Receipt (FDR) in favour of DIG (Prov.), Dte. Genl., CRPF payable at SBI, CGO Complex, New Delhi (Code No.7837) & IFSC Code-SBIN0007837. (ii) An irrevocable Bank Guarantee in the name of DIG (Prov.), Dte. Genl., CRPF., Block No.1, CGO Complex, New Delhi of any Nationalized/reputed Scheduled Bank. The Bank guarantee should be payable at SBI, CGO Complex, New Delhi (Code No.7837). The format is as per <u>Appendix-7.</u> (iii) The Earnest Money shall be valid till 225 days from the date of opening of tender and will remain deposited with the purchaser for the prescribed period as specified in Special Instruction. If the validity of the tender is extended, the validity of EMD document submitted by the tenderer shall also be suitably extended by the tenderer, failing which his tender, after the expiry of the aforesaid period shall not be considered by the Purchaser.
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26	Details of consignee and stores required at	:	Free delivery at consignees location as mentioned below:- - The DIGP, Group Centre, CRPF, Vill- Khewra, PO-Bahalgurh, Meerut Road, Sonipat, Haryana -131021. Tel. No. 0130 -2973903(C/R) 2981888(O), 83 83813886 (M) E-mail : diggcspt@crpf.gov.in Note:- a) Tenderers/Bidders are required to quote rates on free delivery at Consignee's location basis only. b) Tenderers/Bidders received on F.O.R., Destination Stations/ Station of dispatch basis or different rates for different destinations shall be summarily rejected.
27	Dispatch instructions	:	Tendered items are required to be delivered at consignee's location at freight, risk and cost of the supplier.
28	Payment terms.	:	Payment will be made as per GeM terms and conditions after generation of CRAC.
29	Defect Liability Clause	:	In case of any defects in supply or manufacturing or not conforming to technical specifications, observed during survey at consignee location or later during the warranty period, the tenderer will be liable to replace the defective store at their cost.
30	<u>Provisions as per Ministry of Finance, Deptt of Expenditure (Public Procurement Division) OM No. F.No.6/18/2019-PPD dated 23/07/2020 are to be followed :- [Appendix 10 & 10(a)]</u> - <u>MODEL CLAUSES FOR IDENTIFICATION OF BENEFICIARY OWNER(S):-</u> - Any bidder from a country which shares a land border with India will be eligible to bid in this Tender only if the bidder is registered with the competent authority. - I. "Bidder" (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated herein before including any agency branch or office controlled by such person, participating in a procurement process.		

II. “Bidder from a country which shares a land border with India” or the purpose of this Order means:-

- a. An entity incorporated, established or registered in such a country; or
- b. A subsidiary of an entity incorporated, established or registered in such a country; or
- c. An entity substantially controlled through entities incorporated, established or registered in such a country; or
- d. An entity whose beneficial owner is situated in such a country; or
- e. An Indian (or other) agent of such an entity; or
- f. A natural person who is a citizen of such a country; or
- g. A consortium or joint venture where any member of the consortium or joint venture falls under any of the above

III. The beneficial owner for the purpose of (iii) above will be as under :-

1. In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.

Explanation-

- a. “Controlling ownership interest” means ownership of or entitlement to more than twenty-five per cent of shares or capital or profits of the company.
 - b. “Control” shall the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders agreements or voting agreements’.
2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;
 3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;
 4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;
 5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

IV. An Agent is a person employed to do any act for another, or to represent another in dealings with third person.

	Note:- It is clarified that the above order requiring registration of bidders from a country sharing a land border with India in order to be eligible to bid in public procurement, will not apply to bidders from those countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in which the Government of India is engaged in development projects. Updated list of such countries are given in the website of the Ministry of External Affairs.
31	The OEM/Bidder have to submit an undertaking on their letter head that :- i) They have not submitted any false/forged/manipulated/misleading documents in the instant bid and in any bid in the last three years. And also the Central/State Government Organization/PSU/Public listed company have not found their documents fake/misleading in the last three years. ii) Their firm has not been blacklisted by any Govt./PSU agencies during last three years and they are also not insolvent, or subject to liquidation/Court receivership/similar proceedings. iii) Their offers product is meeting all the required parameters of approved QRs/TDs, Buyer added Bid specification Additional terms and conditions.
32	Queries/Representations if any on phone or social media or by post will not be entertained. Only queries/ representations received through GeM window opened for first time will only be examined by the competent authority and same will be communicated to concerned bidder and corrigendum will be issued, if required. Queries/ Representations / Complaints received after closure of GeM Window opened for first time will not be entertained either online or offline. Queries or complaints from firms or persons not participating in the instant bid will also not be entertained.
33	The bid /contract will be governed by the terms and conditions of GeM, GeM Bid and Manual of Procurement of Goods-2017 (Updated up to June'2022) issued by the MoF, Gol, New Delhi read with relevant instructions issued by CVC and Ministry/Department from time to time.
34	Authorized bidder on behalf of OEM is required to submit certificate regarding providing specific warranty for the stores being purchased apart from certification of authorization from the OEM.
35	The Resultant contract will be interpreted as per Indian law as per rule, 173(VI) of GFR, 2017.
36	If any firms quotes Nil or Abnormally low charges /consideration, that will be treated as unresponsive bid.
37	If OEM participates in the bid, then bid from authorized Bidder/Dealer will not be considered.
38	QRs/TDs are sacrosanct, no representation or query what so ever with regard to QR/TDs shall be entertained and bid to be submitted based upon QRs/TDs only.
39	Buyer is at full liberty to withdraw, substitute or modify the bid as per requirement.
40	Subletting or sub contracting in any form is not allowed.
41	All the terms and conditions of Govt. taxes shall be applicable as per the relevant rules.

42	The "Class-I local supplier/Class-II local supplier" at the time of tender, bidding or solicitation shall be required to indicate percentage of local content and provide a certificate from a statutory auditor or cost auditor of the company (in the case of companies) or from practicing cost accountant or practicing chartered accountant, that the item offered meets the local content requirement for 'Class-I local supplier' / 'Class-II local supplier', as the case may be. They shall also give details of the location(s) at which the local value addition is made."
43	Documents related to Annual Turnover/Financial standing duly issued by statutory auditor or cost auditor.
44	Undertaking of firm that it fulfils and accepts all terms & conditions of GeM bid and its product complies with QRs/Specifications of tendered store.
45	Terms and conditions of performance security, duties and taxes, integrity pact, Guarantee and warranty, consignee's right of rejection, payment terms, terms of delivery, liquidated damages, force majeure condition, dispute resolution, arbitration, termination for default, grounds for administrative action of seller. One bid per bidder etc. clauses shall be as mentioned GeM ATC.
46	OEM/Bidder are requested to go through the terms and conditions carefully and accordingly submit all the documents/certificates/literature as called for in the bid, failing which their offer shall liable to be ignored.
47	Bidders with conflict of interest will be disqualified.
48	Authorised dealers must submit Guarantee/Warranty of the store being procured in the instant Bid from the manufacturer apart from submitting authorised dealership certificate from the manufacturer.

APPENDIX-1

BID SECURITY DECLARATION CERTIFICATE

To

The DIG (Prov),
Dte. Genl., CRPF,
CGO Complex, Lodhi Road,
New Delhi

Sir,

Bid No. _____

Date: _____

Name of item/ stores:

We, M/s _____
undertake that if we withdraw or modify our bid during the period of bid's validity or if we are awarded the contract and we fail to sign the contract or fail to submit a Performance Security Deposit as per terms and conditions of T/E as well as A/T before the deadline defined in bids documents, then we are liable to be suspended for the periods of 02 (two) years from being eligible to participate and submit bids for the T/E or any contract with the Procurement Entity (CRPF).

Yours faithfully
(Signature of the Authorized Signatory of Bidder with Official Seal)

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Appendix-2

PRE CONTRACT INTEGRITY PACT

GENERAL

This pre-bid pre-contract Agreement (hereinafter called the Integrity Pact) is made on _____ day of the month of _____ 2024, between, on one hand, the President of India acting through **Shri Megh Raj, Commandant (Proc.), CRPF, MHA**, Government of India (hereinafter called the "BUYER", which expression shall mean and include, unless the context otherwise requires, his successors in office and assigns) of the First Part and M/s _____ represented by Shri _____, Chief Executive Officer (hereinafter called the "BIDDER/Seller" which expression shall mean and include, unless the context otherwise required, his successors and permitted assigns) of the Second Part.

WHEREAS the BUYER proposes to procure **Bullet Resistent Jackets (BIS Level-6)-5000 Nos.** and the BIDDER/Seller is willing to offer/has offered the stores and

WHEREAS the BIDDER is a private company/public company/Government undertaking/ partnership / registered export agency, constituted in accordance with the relevant law in the matter and the BUYER is CRPF, MHA, GOI performing its functions on behalf of the President of India.

NOW, THEREFORE,

To avoid all forms of corruption by following a system that is fair, transparent and free from any influence/prejudiced dealings prior to, during and subsequent to the currency of contract to be entered into with a view to :-

Enabling the BUYER to obtain the desired said **Bullet Resistent Jackets (BIS Level-6)-5000 Nos.** at a competitive price in conformity with the defined specifications by avoiding the high cost and the distortionary impact of corruption on public procurement, and Enabling BIDDERS to abstain from bribing or indulging in any corrupt practice in order to secure the contract by providing assurance to them that their competitions will also abstain from bribing and other corrupt practices and the BUYER will commit to prevent corruption, in any form, by its officials by following transparent procedures.

The parties hereto hereby agree to enter into this Integrity Pact and agree as follows:-

Commitments of BUYER

- 1.1 The BUYER undertakes that no official of BUYER, connected directly or indirectly with the contract, will demand, take a promise for or accept, directly or through intermediaries, any bribe, consideration, gift, reward, favour or any material or immaterial benefit or any other advantage from the BIDDER, either for themselves or for any person, organization or third party related to the contract in exchange for an advantage in the bidding process, bid evaluation, contracting or implementation process related to the contract.
- 1.2 The BUYER will, during the pre-contract stage, treat all BIDDERS alike, and will provide to all BIDDERS the same information and will not provide any such information to any particular BIDDER which could afford an advantage to that particular BIDDER in comparison to other BIDDERS.
- 1.3 All the officials of the BUYER will report to the appropriate Government office any attempted or completed breaches of the above commitments as well as any substantial suspicion of such a breach.
2. In case any such preceding misconduct on the part of such official(s) is reported by the BIDDER to the BUYER with full and verifiable facts and the same is prima facie found to be

correct by the BUYER, necessary disciplinary proceedings, or any other action as deemed fit, including criminal proceedings may be initiated by the BUYER and such a person shall be debarred from further dealings related to the contract process. In such a case while an enquiry is being conducted by the BUYER the proceedings under the contract would not be stalled.

Commitments of BIDDERS

3. The BIDDER commits itself to take all measures necessary to prevent corrupt practices, unfair means and illegal activities during any stage of its bid or during any pre-contract or post-contract stage in order to secure the contract or in furtherance to secure it and in particular commit itself to the following:-
 - 3.1 The BIDDER will not offer, directly or through intermediaries, any bribe, gift, consideration, reward, favour, any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement to any official of the BUYER, connected directly or indirectly with the bidding process, or to any person, organization or third party related to the contract in exchange for any advantage in the bidding, evaluation, contracting and implementation of the contract.
 - 3.2 The BIDDER further undertakes that it has not given, offered or promised to give, directly or indirectly any bribe, gift, consideration, reward, favour, material or immaterial benefit or other advantage, commission, fees, brokerage or inducement to any official of the BUYER or otherwise in procuring the Contract or forbearing to do or having done any act in relation to the obtaining or execution of the contract or any other contract with the Government for showing or forbearing to show favour or disfavour to any person in relation to the contract or any other contract with the Government.
 - 3.3 BIDDERS shall disclose the name and address of agents and representatives and Indian BIDDERS shall disclose their foreign principals or associates.
 - 3.4 BIDDERS shall disclose the payments to be made by them to agents/brokers or any other intermediary, in connection with this bid/contract.
 - 3.5 The BIDDER further confirms and declares to the BUYER that the BIDDER is the original manufacturer/integrator/authorized government sponsored export entity of the defence stores and has not engaged any individual or firm or company whether Indian or foreign to intercede, facilitate or in any way to recommend to the BUYER or any of its functionaries, whether officially or unofficially to the award of the contract to the BIDDER, nor has any amount been paid, promised or intended to be paid to any such individual, firm or company in respect of any such intercession, facilitation or recommendation.
 - 3.6 The BIDDER, either while presenting the bid or during pre-contract negotiations or before signing the contract, shall disclose any payments he has made, is committed to or intends to make to officials of the BUYER or their family members, agents, brokers or any other intermediaries in connection with the contract and the details of services agreed upon for such

payments.

- 3.7 The BIDDER will not collude with other parties interested in the contract to impair the transparency, fairness and progress of the bidding process, bid evaluation, contracting and implementation of the contract.
- 3.8 The BIDDER will not accept any advantage in exchange for any corrupt practice, unfair means and illegal activities.
- 3.9 The BIDDER shall not use improperly, for purposes of competition or personal gain, or pass on to others, any information provided by the BUYER as part of the business relationship, regarding plans, technical proposals and business details, including information contained in any electronic data carrier. The BIDDER also undertakes to exercise due and adequate care lest any such information is divulged.
- 3.10 The BIDDER commits to refrain from giving any complaint directly or through any other manner without supporting it with full and verifiable facts.
- 3.11 The BIDDER shall not instigate or cause to instigate any third person to commit any of the actions mentioned above.
- 3.12 If the BIDDER or any employee of the BIDDER or any person acting on behalf of the BIDDER, either directly or indirectly, is a relative of any of the officers of the BUYER, or alternatively, if any relative of an officer of the BUYER has financial interest/stake in the BIDDER's firm, the same shall be disclosed by the BIDDER at the time of filing tender. The term 'relative' for this purpose would be as defined in Section 6 of the Companies Act 1956.
- 3.13 The BIDDER shall not lend to or borrow any money from or enter into any monetary dealings or transactions, directly or indirectly, with any employee of the BUYER.

4. **Previous Transgression**

- 4.1 The BIDDER declares that no previous transgression occurred in the last three years immediately before signing of this integrity Pact, with any other company in any country in respect of any corrupt practices envisaged hereunder or with any Public Sector Enterprise in India or any Government Department in India that could justify BIDDER's exclusion from the tender process.
- 4.2 The BIDDER agrees that if it makes incorrect statement on this subject, BIDDER can be disqualified from the tender process or the contract, if already awarded, can be terminated for such reason.

5. **Earnest Money (Security Deposit)**

- 5.1 The EMD submitted by the vendors will be treated as the EMD/Security Deposit for the

purpose of Pre contract Integrity:

- (i) A confirmed guarantee by an Indian Nationalized Bank, promising payment of the guaranteed sum to the BUYER on demand within three working days without any demur whatsoever and without seeking any reasons whatsoever. The demand for payment by the BUYER shall be treated as conclusive proof of payment.
- (ii) Any other mode or through any other instrument (specified as EMD/PSD).

5.2 The Earnest Money/Security Deposit shall have to remain valid up to a period of 5 years or till complete conclusion of the contractual obligations to the complete satisfaction of both the BIDDER and the BUYER, including warranty period, whichever is later.

5.3 In case of the successful BIDDER a clause would also be incorporated in the Article pertaining to Performance Bond in the Purchase Contract that the provisions of Sanctions for Violation shall be applicable for forfeiture of Performance Bond in case of a decision by the BUYER to forfeit the same without assigning any reason for imposing sanction for violation of this Pact.

5.4 No interest shall be payable by the BUYER to the BIDDER on Earnest Money/Security Deposit for the period of its currency.

6. **Sanctions for Violations**

6.1 Any breach of the aforesaid provision by the BIDDER or any one employed by it or acting on its behalf (whether with or without the knowledge of the BIDDER) shall entitle the BUYER to take all or any one of the following actions, wherever required:-

- (i) To immediately call off the pre-contract negotiations without assigning any reason or giving any compensation to the BIDDER. However, the proceeding with the other BIDDER(s) would continue.
- (ii) The Earnest Money Deposit (in pre-contract stage) and/or Security Deposit/Performance Bond (after the contract is signed) shall stand forfeited either fully or partially, as decided by the BUYER and the BUYER shall not be required to assign any reason therefore.
- (iii) To immediately cancel the contract, if already signed, without giving any compensation to the BIDDER.
- (iv) To recover all sums already paid by the BUYER, and in case of an Indian BIDDER with interest thereon at 2% higher than the prevailing Prime Lending Rate of State Bank of India, while in case of a BIDDER from a country other than India with interest thereon at 2% higher than the LIBOR. If any outstanding payment is due to the BIDDER from the BUYER in connection with any other contract for any other stores, such outstanding payment could also be utilized to recover the aforesaid sum and interest.
- (v) To encash the advance bank guarantee and performance bond/warranty bond, if furnished by the BIDDER, in order to recover the payments, already made by the B

BUYER, along with interest.

- (vi) To cancel all or any other Contracts with the BIDDER. The BIDDER shall be liable to pay compensation for any loss or damage to the BUYER resulting from such cancellation/ rescission and the BUYER shall be entitled to deduct the amount so payable from the money(s) due to the BIDDER.
- (vii) To debar the BIDDER from participating in future bidding processes of the Government of India for a minimum period of five years, which may be further extended at the discretion of the BUYER.
- (viii) To recover all sums paid in violation of this Pact by BIDDER(s) to any middleman or agent or broker with a view to securing the contract.
- (ix) In cases where irrevocable Letters of Credit have been received in respect of any contract signed by the BUYER with the BIDDER, the same shall not be opened.
- (x) Forfeiture of Performance Bond in case of a decision by the BUYER to forfeit the same without assigning any reason for imposing sanction for violation of this Pact.

6.2 The BUYER will be entitled to take all or any of the actions mentioned at para 6.1(i) to (x) of this pact also on the Commission by the BIDDER or any one employed by it or acting on its behalf (whether with or without the knowledge of the BIDDER), of an offence as defined in Chapter ix of the Indian Penal code, 1860 or Prevention of Corruption Act, 1988 or any other statute enacted for prevention of corruption.

6.3 The decision of the BUYER to the effect that a breach of the provisions of this Pact has been committed by the BIDDER shall be final and conclusive on the BIDDER. However, the BIDDER can approach the independent Monitor(s) appointed for the purposes of this Pact.

7. **Fall Clause**

7.1 The BIDDER undertakes that it has not supplied/is not supplying similar product/systems or subsystems at a price lower than that offered in the present bid in respect of any other Ministry/Department of the Government of India or PSU and if it is found at any stage that similar product/systems or sub systems was supplied by the BIDDER to any other Ministry/Department of the Government of India or a PSU at a lower price, then that very price, with due allowance for elapsed time, will be applicable to the present case and the difference in the cost would be refunded by the BIDDER to the BUYER, if the contract has already been concluded.

8. **INDEPENDENT EXTERNAL MONITORS:-**

8.1 The following officer has been appointed Independent External Monitor (hereinafter referred to as Monitor) for this Pact in consultation with the Central Vigilance Commission (Names and addresses of the Monitor is given as under).

- a) Shri Girish Chandra Chaturvedi, IAS(Retd),

P-2, Gaurav Adhikari Society,
Plot No. C-58/6, Sector-62,
Noida-201309 (UP),
Mob No. 91-981095426,
Telephone : 0120-4213384,
E-Mail gcchaturvedi@gmail.com

- 8.2 The task of the Monitors shall be to review independently and objectively, whether and to what extent the parties comply with the obligations under this pact.
- 8.3 The Monitors shall not be subject to instructions by the representatives of the parties and perform their functions neutrally and independently.
- 8.4 Both the parties accept that the Monitors have the right to access all the documents relating to the project/procurement, including minutes of meetings.
- 8.5 As soon as the Monitor notices, or has reason to believe, a violation of this Pact, he will so inform the Authority designated by the BUYER.
- 8.6 The BIDDER(s) accepts that the Monitor has the right to access without restriction to all Project documentation of the BUYER including that provided by the BIDDER. The BIDDER will also grant the Monitor, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his project documentation. The same is applicable to Subcontractors. The Monitor shall be under contractual obligation to treat the information and documents of the BIDDER/Subcontractor(s) with confidentiality.
- 8.7 The BUYER will provide to the Monitor sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the parties. The parties will offer to the Monitor the option to participate in such meetings.
- 8.8 The Monitor will submit a written report to the designated Authority of BUYER/Secretary in the Department/within 8 to 10 weeks from the date of reference or intimation to him by the BUYER / BIDDER and, should the occasion arise, submit proposals for correcting problematic situations.

9. **Facilitation of Investigation**

In case of any allegation of violation of any provisions of this Pact or payment of commission, the BUYER or its agencies shall be entitled to examine all the documents including the Books of Accounts of the BIDDER and the BIDDER shall provide necessary information and documents in English and shall extend all possible help for the purpose of such examination.

n.

10. Law and place of Jurisdiction

This Pact is subject to Indian Law. The place of performance and jurisdiction is the seat of the BUYER.

11. Other Legal Actions

The actions stipulated in this integrity Pact are without prejudice to any other legal action that may follow in accordance with the provisions of the extant law in force relating to any civil or criminal proceedings.

12. Validity

12.1 The validity of this integrity Pact shall be from date of its signing and extend up to 5 years or till complete execution of the contract to the satisfaction of both the BUYER and the BIDDER/Seller, including warranty period, whichever is later. In case BIDDER is unsuccessful, this integrity Pact shall expire after six months from the date of the signing of the contract.

12.2 Should one or several provisions of this Pact turn out to be invalid; the remainder of this Pact shall remain valid. In this case, the parties will strive to come to an agreement to their original intentions.

13. PCIP is part of the contract and the parties concerned are bound by its provisions. A person signing PCIP shall not approach the Courts while representing the matters of IEMs and he/she will await their decision in the matter.

14. The parties hereby sign this integrity Pact at _____ on _____

BUYER

BIDDER

Name of the Officer. Designation

Department/ Ministry.

Witness

Witness

1. _____

1. _____

2. _____

2. _____

Provisions of these clauses would need to be amended / deleted in line with the policy of the BUYER

—
—
—
—
—
—
—
—
—
—
—
—
—
—

(To be given on Company Letter Head)

Date:

GeM bid No: _____

Name of Tender / Work: - _____

Dear Sir,

1. I/ We have downloaded / obtained the tender document(s) for the above mentioned 'Tender/Work' from the GeM.

2. I / We hereby certify that I / we have read the entire terms and conditions of the tender documents from Page No. _____ to _____ (including all documents like Appendix(s), etc.), which form part of the contract agreement and I / we shall abide hereby by the terms / conditions / clauses contained therein.

3. The corrigendum(s) issued from time to time by your department/ organizations too have also been taken into consideration, while submitting this acceptance letter.

4. I/We hereby unconditionally accept the tender conditions of above mentioned tender document(s) / corrigendum(s) in its totality / entirety.

5. In case any provisions of this tender are found violated, then your department/ organization shall without prejudice to any other right or remedy be at liberty to reject this tender/bid including the forfeiture of the full said earnest money deposit absolutely.

Yours Faithfully,

Signature of Tenderer _____

(Full Name and address of the persons signing in Block letters)

Whether signing as Proprietor/Partner/Constituted Attorney/duly authorized by the Company

(Signature of the Bidder, with Official Seal)

(Appendix-4)

—
PERFORMANCE STATEMENT

(For last three years with Government/Semi government/Limited companies)

(on letter head of bidder)

Name of Bidder

Sl. No.	Organization which placed purchase order to bidder mention order No. & Date	Description of stores	Quantity supplied	HSN Code	Value in INR	CRAC/ Invoice /Inspection Note/Installation certificate No. and date.
1.						
2.						
3.						
4.						

-

-

Note-1: i) The decision on assessment of past performance of DG CRPF will be final.
ii) Copy of supply orders and proof of supply (i.e CRAC/Invoice bill etc.) be attached.

Note-2 i) Being a high value critical item, 30% past performance is required in any one of the last three financial years.
ii) With reference to past performance B.R. Jacket (BIS level-5 and above) and Ballistic shield of
BIS level-5 and above will be considered.

Signature of the Tenderer

-

(Appendix-5)

FORM-7
PROFORMA FOR EQUIPMENT AND QUALITY CONTROL

1. GeM bid No. & Date _____ for the supply of _____
2. Name and Address of the firm _____ :

3. I) Telephone No. Fax/Office/Factory/Works:

II) Telegraphic address:

4. Location of manufacturing works/Factory. Factories owned by you (Documentary). In case you do not own the factory but utilize the factory of some other firm for the manufacture/ fabrication of the stores for which you apply for registration on lease or other base you should furnish a valid legal agreement of the factory of _____ (Here indicate the name of the firm whose factory is being utilized) has been put at your disposal for the manufacture/ fabrication of the stores for which registration has been applied for.

5. Brief description of the factory (e.g. area covered accommodation, departments into which it is divided, laboratory etc.)

6. Details of plant and machinery erected and functioning in each department (Monograms and descriptive pamphlets should be supplied if available).

7. Whether the process of manufacture in factory is carried out with the aid of power or without it.

8. Details and stocks or raw material held (state whether imported or indigenous) against each item.

Production capacity of each item with the existing plant and machinery:

a) Normal _____

b) Maximum _____

9. Details of arrangements for quality control of products such as laboratory etc.

10. (a) Details of Technical/supervisory staff in charge of production and quality control.

(b) Skilled labour employed.

(c) Unskilled labour employed.

(d) Maximum no. of workers (skilled and unskilled) employed on any day during the 18 months preceding the date of application.

11. Whether B.R.Jackets were tested to any standard specification, if so copies of original test certificate should be submitted.

Place _____

Date _____

Signature and designation of the Tenderer

N.B.: Details under column 6 to 11 inclusive need to be restricted to the extent they pertain to the item(s) under reference.

(Appendix-6)

QUESTIONNAIRE ABOUT MANUFACTURER

(Please Mark b in appropriate Box and fill the answer correctly. Tenders leaving the box unmarked and questionnaire unanswered shall be rejected)

1. Name & Address of contractor : _____

2. a) Whether registered with **MSME as MSE**
for subject stores

No.

Yes

(Enclose attested photocopy
of Regn. Certificate)
(Without limit)

b) I
f yes, mon
etary limit
Rs.

(Lakh)

--	--	--	--	--	--	--	--

c)

Validity Date

3. a) Whether registered with
NSIC

for subject store

No

Yes

b)
(Enclose attested photocopy
of Registration Certificate)
t limit)

(Lakh)

(Withou

							c)
--	--	--	--	--	--	--	----

Validity Date

4. Whether recognized as start-up by DPIIT.

s

No

Ye

5.

if called upon to do so within 60 days of issuance of intimation to your firm.
No

Whether you agree to demonstration of your product
Yes

6. Whether past supplier of subject store to Min. of Home Affairs / GOI during the last 3 years.

(If yes, submit performance report in enclosed Performa)
No

Yes

7. Terms of delivery: (Free delivery to consignee's location)

es No

Y

8. Quantity offered

9. Delivery period in months from the date of placement of order.

—

10. Make and Model quoted.

schedule specification in all respect.

Yes

No

(b) If answer to 11(a) is No. indicate the details of deviation in separate sheet.

Contained in Tender Enquiry.

Yes

No

EMD/Bid Security Declaration Certificate?

No

Yes

14. Do you accept tolerance clause:

No

Yes

15. Do you accept Liquidated damage clause:

No

Yes

. signed by witnesses.

Yes

No

17. Do you accept Guarantee/Warranty clause:

No

Yes

No

Yes

No

Yes

Integrity Pact (P.C.I. P.). :

Yes

No

Yes

No

blacklisted / banned?

Yes

No

as per Tender Enquiry.

Yes

No

in the given States :

Yes No

Yes No

Yes No

Tender Enquiry
Yes No

Yes No

Signature of Tenderer : _____

Name in Block letters : _____

Capacity in which Tender is signed : _____

Full Address : _____

-

APPENDIX-7

BANK GUARANTEE FORMAT FOR FURNISHING EARNEST MONEY DEPOSIT (EMD)

-

Whereas.....

(Hereinafter called the "tenderer")

has submitted their offer dated.....

for the supply of.....

(hereinafter called the "tender")

against the purchaser's tender enquiry No.....

KNOW ALL MEN by these presents that WE..... of.....

.....having our registered office at

.....are bound unto..... (hereinafter called the "Purchaser) in the sum of

.....for which payment will and truly to be made to the said Purchaser, the Bank binds itself, its successors and assigns by these presents. Sealed with the Common Seal of the said Bank this.....day of.....2023.

THE CONDITIONS OF THIS OBLIGATION ARE :

(1) If the tenderer withdraws or amends, impairs or derogates from the tender in any

- respect within the period of validity of this tender.
- (2) If the tenderer having been notified of the acceptance of his tender by the Purchaser during the period of its validity:-
- If the tenderer fails to furnish the Performance Security for the due performance of the contract.
 - Fails or refuses to accept/ execute the contract.

We undertake to pay the Purchaser up to the above amount upon receipt of its first written demand, without the Purchaser having to substantiate its demand, provided that in its demand the Purchaser will note that the amount claimed by it is due to it owing to the occurrence of one or both the two conditions, specifying the occurred condition or conditions.

This guarantee will remain in force up to and including 45 days after the period of tender validity and any demand in respect thereof should reach the Bank not later than the above date .

When communication is received from or on behalf of DG CRPF to invoke this Bank Guarantee, the amount will be remitted to in favour of DIG (Prov,) Dte. Genl., CRPF payable at SBI, CGO Complex, New Delhi (Code No.7837)

.....
(Signature of the authorized officer of the Bank)

.....
Name and designation of the officer

.....
Seal, name & address of the Bank and address of the Branch

(Appendix-8)

DETAILS OF MANUFACTURER/AUTHORIZED DEALER

-

1.	Details of manufacturer:-	
a)	Name of manufacturer:-	
b)	Office address	
	City and PIN code No.	
	State	
	Telephone/Fax No.	
	Mobile Tel. No.	
	Email address	
c)	Address of Work place/Manufacturing place:-	
	City and PIN code No.	
	State	
	Telephone/Fax No.	

	Mobile Tel. No.	
	Email address	
d)	Name of person to be contacted:-	
	Designation	
	Telephone/Fax No.	
	Mobile Tel. No.	
	Email address	
2.	In case of foreign Firm, contact person in Delhi, India.	
a)	Name of person	
b)	Name of firm/company	
	Address	
	City and PIN code No.	
	State	
	Telephone/Fax No.	
	Mobile Tel. No.	
	Email address	
3.	Please confirm that you have offered packing as per tender enquiry requirements, if not indicate deviations.	Yes/No.
	Deviations, if any	
4.	Gross weight of consignment.(Net weight of each item)	
5.	Name of the firm as registered.	
	Under which act firm is registered.	
	Date of constitution.	
	PAN No. (Certificate is mandatory to deposit)	
	TIN No. (Certificate is mandatory to deposit)	
	Excise Regn. No.(Certificate is mandatory to deposit)	
	Sales tax office address	
	Address	
	City and PIN code No.	
	State	
	Telephone/Fax No.	

	Mobile Tel. No.			
	Email address			
	Income tax office address			
	Address			
	City and PIN code No.			
	State			
	Telephone/Fax No.			
	Mobile Tel. No.			
	Email address			
	Excise office address			
	Address			
	City and PIN code No.			
	State			
	Telephone/Fax No.			
	Mobile Tel. No.			
	Email address			
6.	Upto what period return has been submitted to which agency:-			
	Name of raw material	Name of likely supplier	Country of origin	
7.	Details of turnover and tax deposited for last three financial year			
	Fin. Year	Total turnover	Total Profit	Total sales tax deposited
				Total excise duty deposited
8.	Name of authorised signatory (Supporting document is required to be attached)			
	Name.			
	Name of supporting document attached			

-

undertaking

-

I do hereby declare that all statement made mentioned above are true, complete and correct to the best of my knowledge and belief. In the event of information being found false or incorrect or ineligible being deducted before or after opening of tender or any stage of the procurement, my candidature will stand cancelled and my all claims for the purpose forfeited.

(Signature of the Witness)

Name & Address _____

Dated _____

(Signature of the Tenderer) _____

Address _____

Dated _____

Whether signing as Proprietor/Partner/Constituted
Attorney/duly authorized by the Company

(Appendix-9)

Check list for tenderers

-

(Tenderers should check following requirements for compliance before submission of the tender documents)

SL No	Requirements to be checked by the tenderers/Bidders before submission of the tender.	Compliance (To be indicated by the tenderer with "YES" after compliance of the requirements)

1.	Tenderers/Bidders should ensure deposit of required Earnest Money Deposit if the tenderers are not registered with MSME as MSE unit and NSIC for the store(s) quoted for the governing specification as per GeM Bid.	
2.	Tenderers/Bidders should ensure that their registration with MSME as MSE unit and NSIC is valid if they are registered with MSME as MSE unit or NSIC and not depositing Earnest Money. They should enclose the latest MSME as MSE unit and NSIC registration certificate.	
3.	Tenderers/Bidders should confirm that their equipment / products conform to the governing specifications of the quoted stores as per GeM Bid.	
4.	Tenderers/Bidders should mention their monthly manufacturing / supply capacity.	
5.	Tenderers/Bidders should mention in the Tender Enquiry that they accept our delivery terms i.e. they agree to supply stores at consignees' locations at freight, risk and cost of the tenderers/Bidders.	
6.	Tenderers/Bidders should mention that their offer is valid up to 180 days from the date of opening of the bid.	
7.	Tenderers/Bidders should mention their Delivery Period clearly.	
8.	Tenderers/Bidders should mention that they agree to the Tolerance Clause of the GeM Bid.	
9.	Tenderers/Bidders should give their past performance in the specified format given in the bid documents.	
10.	Tenderers/Bidders should mention that they agree to the Arbitration clause of the bid.	
11.	Tenderers/Bidders should mention that they agree to accept the conditions of the contract.	
12.	Tenderers/Bidders should ensure that they have duly filled up Equipment and Quality Control Proforma given in the bid documents.	
13.	Tenderers/Bidders should mention that Business dealing with their firms has not been banned by any govt. / private agencies.	
14.	Tenderers/Bidders should ensure that witness has signed at appropriate places of the Tender documents and full name and address of the witness have been mentioned clearly.	
15.	If the Tenderers/Bidders want to mention any specific condition, it should be mentioned on the covering/forwarding letter only which will be placed on the first page of the technical bid. Such condition mentioned in any other document shall not be given any consideration.	
16.	Tenderers/Bidders should mention their address for communication with Telephone, e-mail and Fax number.	
17.	Tenderers/Bidders should confirm that Pre Contract Integrity Pact (PCIP) duly filled is attached.	

Signature of the tenderer

Appendix-10

-

Certificate to be furnished by bidder

-
To,

The DIG(Prov), Dte. Genl.
CRPF, CGO Complex, Lodhi Road,
New Delhi, PIN - 110003

Sir,

GeM Bid No. _____ Dated _____

Name of Item / Store:: _____

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this bidder is not from such a country or, if from such country, has been registered with the Competent authority, I hereby certify that this bidder fulfils all requirements in this regard and is eligible to be considered. (Where applicable, evidence of valid registration by the competent authority shall be attached)".

Yours faithfully

(Signature of the Authorized Signatory of Bidder, with official seal)

Remarks:-

If the above certificate given by a bidder whose bid is accepted is found to be false, this would lead to immediate termination and further legal action in accordance with Law.

-

Appendix-10(a)

Certificate to be furnished by bidder

-
To,

The DIG(Prov), Dte. Genl.
CRPF, CGO Complex, Lodhi Road,
New Delhi, PIN - 110003

Sir,

GeM Bid No. _____ Dated _____

Name of Item / Store:: _____

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I hereby certify that this bidder is not from such a country and is eligible to be considered."

Yours Faithfully

(Signature of the Authorized Signatory of Bidder, with official seal)

Remarks:-

If the above certificate given by a bidder whose bid is accepted is found to be false, this would lead to immediate termination and further legal action in accordance with Law.

-
-
-

7. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

Disclaimer/अस्वीकरण

The additional terms and conditions have been incorporated by the Buyer after approval of the Competent Authority in Buyer Organization, whereby Buyer organization is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any eccentricity / restriction arising in

the bidding process due to these ATCs and due to modification of technical specifications and / or terms and conditions governing the bid. Any clause(s) incorporated by the Buyer regarding following shall be treated as null and void and would not be considered as part of bid:-

1. Definition of Class I and Class II suppliers in the bid not in line with the extant Order / Office Memorandum issued by DPIIT in this regard.
2. Seeking EMD submission from bidder(s), including via Additional Terms & Conditions, in contravention to exemption provided to such sellers under GeM GTC.
3. Publishing Custom / BOQ bids for items for which regular GeM categories are available without any Category item bunched with it.
4. Creating BoQ bid for single item.
5. Mentioning specific Brand or Make or Model or Manufacturer or Dealer name.
6. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
7. Floating / creation of work contracts as Custom Bids in Services.
8. Seeking sample with bid or approval of samples during bid evaluation process.
9. Mandating foreign / international certifications even in case of existence of Indian Standards without specifying equivalent Indian Certification / standards.
10. Seeking experience from specific organization / department / institute only or from foreign / export experience.
11. Creating bid for items from irrelevant categories.
12. Incorporating any clause against the MSME policy and Preference to Make in India Policy.
13. Reference of conditions published on any external site or reference to external documents/clauses.
14. Asking for any Tender fee / Bid Participation fee / Auction fee in case of Bids / Forward Auction, as the case may be.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller within 4 days of bid publication on GeM. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

[This Bid is also governed by the General Terms and Conditions/ यह बिड सामान्य शर्तों के अंतर्गत भी शासित है](#)

In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action

in accordance with the laws./जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।

---Thank You/धन्यवाद---